



Contract for [Deal.Title]

Transaction Summary

Price - [Deal.FormattedValue]

Earnest Money - [Deal.EM.Formatted]

Closing Date - On or Before [Deal.Closing_Date]

Title Company - [Deal.Title_Co]

Title Company Contact

[Deal.Closer.Name]

[Deal.Closer.Email]



Created by:

Legacy Invest

Prepared for:

[Deal.Buying_Entity]

[Deal.Buyer.Name]

[Deal.Buyer.Email]

[Deal.Buyer.Phone]

Contract to Purchase Real Estate

For Good Consideration, This Agreement dated _____ by and between **[Deal.Seller]** as Seller(s) and as Buyer(s) **[Deal.Buying_Entity]**, by and between which terms may be singular or plural and will include the heirs, successors, personal representatives and assigns of Sellers(s) and Buyer(s), hereby agree that Seller(s) will sell, and Buyer(s) will buy the following property, upon the following terms and conditions if termed or marked. IF any conflict of terms or conditions, that which is added and agreed upon both parties in writing, will be superseded by that which is printed. The Buyer may transfer this contract for the purpose of setting up an LLC or INC. **If said Buyer(s) does not communicate in writing the intent to execute this contract within 2 business days after the date the agreement was sent, this contract is considered voidable.**

Description of Real Estate

known by address as **[Deal.Title]**. The description, unless specifically excluded, includes all other items which include any fixtures, window and floor coverings, built-in appliances, draperies including hardware, shades, blinds, window and door screens, awnings, outdoor plants, trees, and other permanently attached items on premises.

Purchase Price: Seller(s) agrees to convey property to Buyer(s) for the sum of US **[Deal.WeightedValue.Formatted]** with earnest money in the amount **[Deal.EM.Formatted]** in escrow by agent of Seller(s)'s and will be the sole remedy without further recourse between parties upon default of this agreement to be retained by the Seller(s). The buyer has **72** hours to deposit said earnest money to **[Deal.Title Co]**.

If the buyer fails to deposit earnest money within the set deadline, this agreement becomes voidable at the seller's discretion. Earnest money is to be held in the designated escrow account chosen below. After loan approval, Buyer agrees that if the closing on the purchase and sale of the subject property is not consummated within 60 days of the effective date hereof, the Earnest Money shall be forfeited to Seller(s). It shall be in Seller(s)'s sole discretion to extend the closing date, which must be in writing signed by the Seller(s) to be effective.

Transaction Funding: Please select an option below: (No selection will be considered a "CASH" transaction).

☐ Cash Transaction- "All Cash Transaction": Buyer's obligation to close shall not be subjected to any final contingency. Buyer reserves the right to obtain a loan. Earnest money shall not be refundable if the Buyer cannot close for financial reasons. Purchase money (less earnest money deposit) shall be wired into the closing attorney's escrow account before closing.

☐ Conventional Financing Loan(s) To Be Obtained: This agreement is contingent upon the Buyer's ability to obtain a loan.

☐ Non-Conventional Financing. The buyer shall immediately send their pre-qualification letter from the private money lender. Buyer must complete and return all loan documents within 10 days of the binding agreement. The terms of this financing shall be as follows:

In the event Buyer, having acted in good faith and in accordance with the terms below, is unable obtain financing, Buyer may terminate this agreement by providing notice and a copy of the lender's loan denial letter. A Denial letter is required for the return of earnest money. If no financing option is chosen, an all cash purchased is assumed.

1) CLOSING: Closing will commence ON or BEFORE [Deal.Closing_Date] With the seller(s) selected title company. Title will be conveyed by a Warranty Deed and the taxes will be prorated unless otherwise specified. The Seller(s) will pay for the following costs: Normal Seller Closing Costs. The Buyer(s) will pay for the following costs: Normal Buyer Closing Costs.

2) Appraisal: This sale is not contingent upon an appraised value. An appraisal is the documentation a lender uses to determine value when collateralizing a loan. The appraised value ensures the lender is protected in case of default. This sale is not contingent upon an appraised value as the property being sold is an investment property and is being sold based on a yield.

3) Examination of Title: Buyer(s) will examine title to property and reserves the right to rescind this contract null and void if financial encumbrances on said property are more than originally stated in good faith to Buyer(s).

4) Inspection: Buyer shall have 5 business days to make all inspections. After this time, earnest money shall not be refunded unless this agreement is contingent on financing and financing cannot be obtained. Upon closing date, Buyer(s) reserves the right to do a final walkthrough of the premises to ensure the condition of the property is in the same or better condition than when this agreement was Execution: Time is of the essence in this agreement and there are no other agreements, promises or understandings between these parties except as specifically set forth herein. Furthermore, this agreement shall become effective as of the date of the last signature. If this agreement is not signed in its entirety or implication has been given that the Buyer(s) will sign. This contract will be voidable after 2 business days.

5) Property Access: Access to the property shall be granted to Buyer(s) with a key, solely to show property to interested parties pertinent to this agreement, including Buyer(s)'s partners, contractors, property inspectors, and lenders. Access to the property is subject to tenants' rights if applicable.

6) Risk: This purchase contract is between SELLER(s) and BUYER(s). All investment carries risk. The projected estimated cash flow is based on the current market information and Seller will not be responsible for any changes in market movement, future government changes, or new bank laws.

7) Prorations & Transfers: Real estate taxes, dues, association fees, rents, and security deposits, if any, on said property for the calendar year in which the sale is closed shall be prorated and transferred as of the disbursement date. The leasing fee, if any, on said property shall be reimbursed to the seller on the disbursement date.

8) Entire Agreement: This Contract and any addenda hereto constitute the entire agreement between the parties hereto and cannot be changed, except in writing. No agreements between the BUYER(s) and SELLER(s) shall be binding unless they are in writing and executed by both parties. With execution of this agreement, both parties acknowledge that all terms and provisions governing this transaction are contained within this Contract. BUYER(s) does not rely on any statements or representations made by any person or entity whatsoever not contained herein. This written Contract supersedes all spoken or prior written agreements.

9) Choice of Law: This Agreement and all matters arising hereunder shall be governed by and construed in accordance with the laws of the State of TN. In the event any dispute arising hereunder ends up in litigation the Buyer(s) agree that it shall take place in the court of proper jurisdiction in the State of TN , County of Shelby ..

Address [Deal.Title]

Terms Addendum

- The Acceptance deadline is _____
- The Buyers due diligence on renovated properties starts when the buyer signs the contract.
- The Buyers due diligence on properties being rehabbed starts when the seller notifies the buyer by email that the rehab phase is complete.
- This contract is not binding, and the property will continue to be marketed and can be sold to another client until earnest money is received.
- Due to circumstances that are out of our control caused by the covid pandemic, and the labor and material shortages. There will be no credits, buydowns, or earnest money refunds given, if the buying process taking longer than expected.
- Buyer has the right to choose their own lender. IF the buyers' lenders' appraisal does NOT come in at value and a rebuttal is unsuccessful, Buyer agrees to switch to one of the sellers' recommended lenders that offer similar loans and fees. Seller agrees to pay for the new appraisal. IF buyer refused, earnest money will not be refunded.
- Legacy Invest Realty does not represent the buyer.

Address [Deal.Title]

BUYER'S OPTIONAL SERVICES AUTHORIZATION

Please select "yes" or "no" by each item and sign below if you wish to have any Services listed below provided to you from the Seller. Buyer agrees that these services are at the expense of the Buyer and that the Buyer accepts responsibility for the payment of these services. Service costs will be invoiced and collected at closing. Buyer acknowledges and agrees that Seller is not responsible or liable in any way for the errors, omissions or conduct of any inspectors, contractors or other parties through whom services are rendered. If "no" is selected for any item, the buyer waives the right to the service being offered by Seller and releases Seller from all liability.

Would you, the Buyer, like Legacy Invest on your behalf to order a home inspection from a licensed home inspection company for a cost of \$450.00?

Would you, the Buyer, like Legacy Invest on your behalf to order a pest inspection from a licensed pest inspection company for a cost of \$200.00?

Would you, the Buyer, like Legacy Invest on your behalf to generate an insurance quote through its affiliated business **Goosehead Miller Agency** with the information collected in this contract.

Authorized Signor: **Ewell Miller** for [Deal.Seller]

Buyer [Deal.Buyer.Name]

Signature

Date

Buyer

Signature

Date

Seller **Ewell Miller**

Signature

Date

Informed Consent and Disclosure

Buyers [Deal.Buying_Entity]

This disclosure is to provide you, the prospective Buyer of [Deal.Title] with the opportunity to make an informed choice and investment decision. The owners and operators of Legacy Invest Realty also own and operate several other companies that provide investors with various services associated with buying, selling, financing, insuring and managing investment properties. Our goal is to improve your overall property investment experience. However, it is important to us that you understand the relationships between these companies and the viable services offered to you.

In an effort to disclose complete transparency, the owner of Legacy Invest Realty, Goosehead Miller Agency insurance, and Legacy Invest Realty Property Management company may be helping you with these various services. All these companies are under the Legacy Invest umbrella. Additionally, each individual company has a direct or indirect financial interest in each other and may be individually and separately compensated for these services. Legacy Invest companies are working independently from each other.

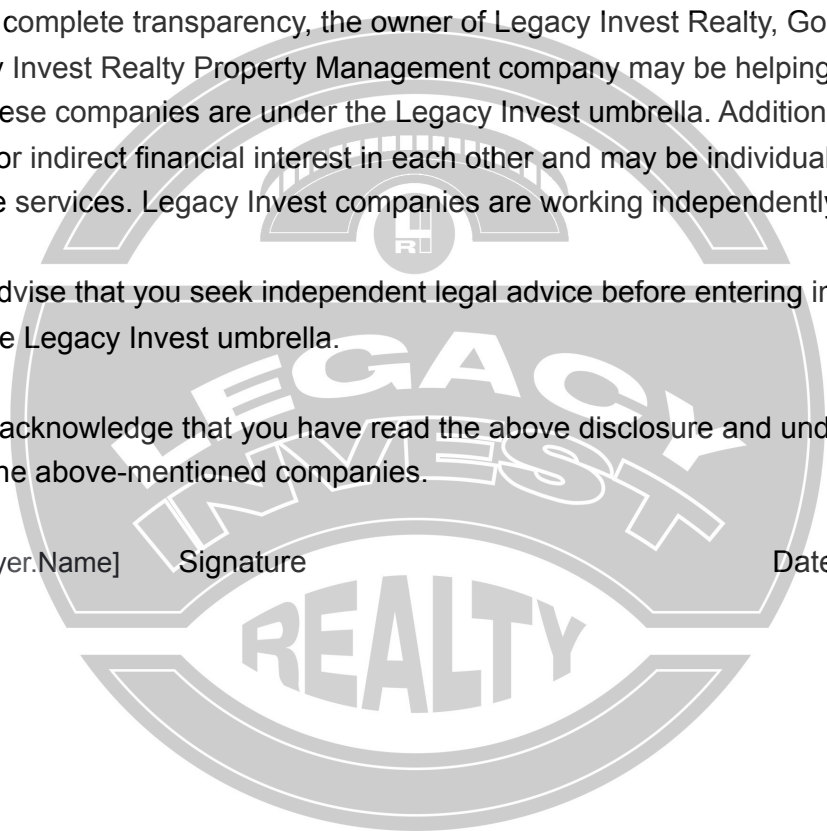
We recommend and advise that you seek independent legal advice before entering into any agreement with any company under the Legacy Invest umbrella.

By signing below, you acknowledge that you have read the above disclosure and understand the relationship between the above-mentioned companies.

Buyer: Name[Deal.Buyer.Name]

Signature

Date



APPRAISAL RIDER

Note: In order to facilitate loan approval, Buyer should have the appraisal process completed by the Loan Contingency Date.

SALE CONTRACT DATE: _____

PROPERTY: [Deal.Title]

BY AND BETWEEN: [Deal.Buying_Entity], Buyer(s) and
the undersigned Seller(s).

1. If this contract **is contingent upon financing**, this contract is also contingent upon the property appraising for not less than the purchase price by an appraiser selected by Buyer's lender. If the property does not appraise for the purchase price or higher and Buyer elects to act on this contingency, Buyer shall deliver a copy of the appraisal to Seller or Listing Broker within two (2) days after it is available to Buyer from lender. If Seller does not agree, by written notice to Buyer or Selling Broker, to adjust the purchase price to the appraised value within five (5) days after receipt of the appraisal by Seller or Listing Broker, then Buyer, at Buyer's option, may terminate this contract, with earnest money to be returned to Buyer, subject to paragraph 12 of the Sale Contract. If Buyer intends to terminate this contract, Buyer must deliver written notice of termination to Seller or Listing Broker within two (2) days following the aforementioned five (5) day period. (If the appraisal is not delivered to Seller or Listing Broker by the loan contingency date, this contingency is waived.)
2. If this contract **is not contingent upon financing**, this contract is, at the option and expense of Buyer, contingent upon the property appraising for not less than the purchase price by an appraiser of Buyer's choice, licensed by the State of Missouri. If the property does not appraise for the purchase price or higher and if Buyer elects to act on this contingency, Buyer shall deliver a copy of the appraisal to Seller or Listing Broker within two (2) days after it is available to Buyer, but not later than fifteen (15) days after the "Acceptance Deadline" date of this contract. If Seller does not agree, by written notice to Buyer or Selling Broker, to adjust the purchase price to the appraised value within five (5) days after Seller's receipt of the appraisal, then Buyer, at Buyer's option, may terminate this contract, with earnest money to be returned to Buyer, subject to paragraph 12 of the Sale Contract. If Buyer intends to terminate this contract, Buyer must deliver written notice of termination to Seller or Listing Broker within two (2) days following the aforementioned five (5) day period.
3. For the avoidance of doubt, the parties agree that Seller's refusal to adjust the purchase price to the appraised value before the expiration of the five (5) day period shall not reduce such five (5) day time period or the following two (2) day period for purposes of Buyer's right to terminate this contract as provided above.
4. Nothing in Section 1 and 2 above shall prevent Buyer and Seller from reaching a written negotiated price adjustment prior to the termination of the contract.
5. If the purchase price is reduced as a result of the appraisal, then the loan amount in Buyer's loan contingency shall be proportionately reduced.

BUYER SIGNATURE _____ DATE _____

SELLER SIGNATURE _____ DATE _____

Buyer Printed Name [Deal.Buyer.Name]

Seller Printed Name _____

BUYER SIGNATURE _____ DATE _____

SELLER SIGNATURE _____ DATE _____

Buyer Printed Name _____

Seller Printed Name _____

SPECIAL SALE INSPECTION RIDER

Note: This rider should be used when a Special Sale Contract is used, but Buyer retains the right to inspection(s). Language in any seller addendum may supersede language found in this Rider and in the Special Sale Contract.

SALE CONTRACT DATE: _____

PROPERTY: [Deal.Title]

BY AND BETWEEN: [Deal.Buying Entity], Buyer(s) and the undersigned Seller(s).

Seller will arrange, at seller's expense for the following utilities to be turned on during the inspection period (as defined below):
Electric, Gas, And Water _____ (none, if left blank).

Seller grants Buyer and selling broker the right to have all other utilities turned on or transferred, at Buyer's expense, to facilitate the inspection(s).

Within 5 days (10 days if none stated) after the "Acceptance Deadline" date (the "Inspection Period"), Buyer may purchase one or more written home inspection report(s) from any independent qualified inspector(s) of the Property and improvements as deemed necessary by Buyer, including, but not limited to, environmental hazards; termite and wood-destroying insect infestation and damage; plumbing, including water, well, sewer, septic and waste-water treatment systems; roof and other structural improvements; heating and air conditioning systems and equipment; electrical systems and equipment; swimming pools and equipment; chimneys, flues and gas lines/fuel runs; basement leaks and exterior drainage; and mechanical equipment, including appliances. **Discovery of an unsafe condition(s) may result in immediate shut off of one or more appliances or utilities.** Buyer's Inspection Period will end upon the delivery of the Inspection Notice described below or the time period stated above, whichever occurs first. Failure by Buyer to purchase and perform an inspection within the time period stated above shall constitute a waiver and acceptance of any conditions an inspection would have disclosed. **Buyer should contact law enforcement officials for information pertaining to whether registered sex offenders or other convicted criminals reside in the area.**

Within the Inspection Period, Buyer shall furnish a written Inspection Notice to Seller or listing broker stating one of the following:

- (1) Buyer is satisfied with the inspections. Delivery of inspection reports to Seller or listing broker is not required. If Seller or listing broker has not received the written Inspection Notice by the end of the Inspection Period, Buyer shall be deemed to be satisfied with the results of any inspections.
- (2) Buyer is terminating the contract, with earnest money to be returned to Buyer, subject to paragraph 12. In this case, Buyer shall have purchased one or more home inspection report(s) from an independent qualified inspector(s), as provided for above, which together cover the substantial structural elements and systems of the Property. Buyer shall provide such report(s) to Seller or listing broker, if requested by Seller.
- (3) Buyer is willing to close upon satisfaction of the requirements set forth in the Inspection Notice which must be accompanied by a complete copy of the written inspection report(s), purchased by Buyer. The parties have a total of _____ days (10 days if none stated) after date of Seller or listing broker's receipt of the Inspection Notice (the "Resolution Period") to reach a written agreement as to the requirements set forth in the Inspection Notice, or as to an agreed upon monetary adjustment, or the contract is terminated, and earnest money deposit to be returned to Buyer, subject to paragraph 12. During the Resolution Period, either a written commitment by Seller to meet the requirements originally submitted by Buyer in the Inspection Notice, or a written commitment by Buyer to accept the Property without such requirements, shall constitute an "agreement" for purposes of this paragraph even after earlier negotiation failed to produce an agreement.

Buyer acknowledges: 1) that listing broker and selling broker do not have expertise in determining any defects that may be disclosed by any inspections; 2) that Buyer will not rely upon listing broker or selling broker in any way as to the selection of a particular company for any inspections, warranties, and services; 3) that any inspections, warranties, and services may be available from more than one company and that the determination to select a particular company and the completeness and satisfaction of any said inspection, warranty or service is the sole responsibility of Buyer; 4) that when choosing an inspector, warranty, service company, title company, lender, repair company, or any other service provider, Buyer should consider, but not be limited by, the existence of errors and omissions insurance, liability insurance, business and professional licensure, membership in professional associations and years of experience; 5) that there have been no warranties, express or implied, by Seller or real estate brokers.

Seller grants Buyer, selling broker, and any inspector whose report prompted a request for repairs, the right to enter and walk-through the Property, and the right to have the utilities transferred to Buyer, within four (4) days prior to Closing. The purpose of the walk-through is only for the Buyer to confirm that the Property is in the same condition, ordinary wear and tear excepted, as it was on the date of this contract, and that repairs are completed in workmanlike manner.

BUYER SIGNATURE	DATE	SELLER SIGNATURE	DATE
<u>[Deal.Buyer.Name]</u>		<u>Ewell Miller</u>	
Buyer Printed Name		Seller Printed Name	

BUYER SIGNATURE	DATE	SELLER SIGNATURE	DATE
_____		_____	
Buyer Printed Name		Seller Printed Name	